

separately presented as a distinct count.

Plaintiff may file and serve a second amended complaint within 30 days. If she does not do so, the Court will take that as an election not to amend and will accordingly dismiss the action.

Conclusion

Defendant's demurrer is **sustained with leave to amend**. It appears possible the Plaintiff may be able to properly allege federal claim(s) that are not barred by the failure to file a government claim and which may not be barred by the applicable statute of limitations given her son's status as a minor.

If Plaintiff contests this tentative ruling to seek leave to amend beyond what has been granted, she should appear at the hearing (Zoom okay) prepared to explain exactly what other amendments she has in mind and why they would be effective and permissible.

14. 9:00 AM CASE NUMBER: C25-02495
CASE NAME: JAMES STROUT VS. JENNIFER HOLDEN
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY:
TENTATIVE RULING:

The motion to withdraw is **moot** in light of the subsequent substitution filed.

15. 9:00 AM CASE NUMBER: C25-02505
CASE NAME: TRUDY LOGAN VS. ONPOINT AMERISAFE SERVICES, LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO JASON D. FRIEDMAN
FILED BY: ONPOINT AMERISAFE SERVICES, LLC
TENTATIVE RULING:

Jason Friedman's application to appear pro hac vice is **granted**.

16. 9:00 AM CASE NUMBER: L24-04469
CASE NAME: CAPITAL ONE, N.A. VS. MICHAEL CHONG
***HEARING ON MOTION IN RE: FOR STAY OF ENFORCEMENT JUDGMENT PENDING APPEAL**
FILED BY: CHONG, MICHAEL W
TENTATIVE RULING:

This motion is **moot** in light of defendant's express abandonment of his appeal and the dismissal of the appeal.

17. 9:00 AM CASE NUMBER: MSC21-01164
CASE NAME: KIRK PATRICK ANTHONY JONES, JR. VS. REAL TIME STAFFING SERVICES, LLC
***HEARING ON MOTION IN RE: COMPLIANCE AND DISTRIBUTION STATUS SET BY THE COURTROOM.**
FILED BY:
TENTATIVE RULING:

The report of plaintiffs' counsel is satisfactory, and the distribution is deemed completed. The remaining \$6,000 may be disbursed to plaintiffs's counsel.

18. 9:00 AM

CASE NUMBER: MSC21-02258

CASE NAME: THOMAS VS. ECKERT

HEARING ON SUMMARY MOTION

FILED BY: BAYWOODS HOMEOWNERS ASSOC.

TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by Baywoods Homeowners Association and Homeowners Management Co., LLC (collectively "Baywoods defendants" or "moving parties"). The motion is **denied**, as set forth below. Defendant David Eckert's joinder is also **denied**.

I. Background

Plaintiff Adrienne Thomas purchased a condominium in 2006 and as part of that purchase, became subject to the applicable CC&Rs, which make the Baywoods Homeowners Association responsible for certain repairs, including maintaining, repairing, and replacing the Common Area pursuant to the recorded CC&Rs. (Separate Statement of Undisputed Material Fact, hereinafter "SSUMF," Fact. No. 1, and plaintiff's response.) The Baywoods CC&Rs define Building Common Area to include central heating and air-conditioning equipment. (SSUMF, Fact. No. 2, and plaintiff's response.) Management of the Common Area is vested in the Baywoods Homeowners Association. (SSUMF, Fact. No. 3, and plaintiff's response.)

Plaintiff does not know when it appeared or began, but in January 2021 plaintiff observed a soot-like dust in her unit and made a complaint about such dust to the HOA. (SSUMF, Fact. Nos. 4-7, and plaintiff's response.) Contractors cleaned plaintiff's unit and replaced components of the HVAC system—work plaintiff did not need to pay for. (SSUMF, Fact. Nos. 8-11, and plaintiff's response.)

In 2021, an HVAC contractor, Peter Tyndall, observed the dust collected in the HVAC filters, and recommended replacement of the HVAC system, though the HVAC system would not have caused any "soot." At deposition, Tyndall acknowledged a lack of expertise in mold or moisture issues, though he identified no statutory or code violations. (SSUMF, Fact. Nos. 12-14, 16-17, 19, and plaintiff's response.)

Plaintiff filed this action against David Eckert, as well as Baywoods Homeowners Association and Homeowners Management Co., LLC in October 2021. After a demurrer by defendant Eckert was sustained, plaintiff filed the operative Second Amended Complaint ("SAC") on May 31, 2023. Plaintiff therein alleges, *inter alia*, that Baywoods HOA failed to investigate complaints and complete required repairs. As a result, plaintiff alleges her unit was in a hazardous condition that caused her health issues and expenses.

The SAC alleges five causes of action: (1) breach of contract, (2) negligence, (3) negligence per se, (4) gross negligence, and (5) intentional infliction of emotional distress. In July of 2023, the defendants answered the SAC by way of general denial.

In early March of 2024, plaintiff's deposition was taken. She testified at that time that she did not know the cause of the soot-like condition, but that the HVAC system had been replaced after Tyndall recommended replacement. (SSUMF, Fact. Nos. 15, 20-22, and plaintiff's response.)

Baywoods defendants now moved for summary judgment or summary adjudication in the